

The original responses from Plaintiff were clearly insufficient; it appears that Plaintiff has now somewhat complied. The Court recognizes that Defendant made many efforts to moot the motion by attempting to meet and confer, and Plaintiff, while not being wholly unresponsive, failed to make sufficient efforts either to comply with discovery or to engage substantively in the meet and confer process. Defendant did not seek sanctions in their motion and Plaintiff did not “unsuccessfully . . . oppose[the] motion.” While the Court agrees that the discovery responses—failing to give addresses or identify documents—remain deficient, given the confusion regarding the proper Plaintiff, it is not clear without further discussion how to remedy the failure.

Parties to appear. Counsel for Plaintiff is ordered to be prepared to make representations regarding amendment of the Complaint if it is necessary and amendment of discovery, including verification.

8. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***HEARING ON MOTION IN RE: ON PLEADINGS**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves “for an order dismissing this action based solely on pleadings.” He purportedly bases this motion on “Federal Rule of Civil Procedure 12(c).” He then argues that judgment should be entered because the complaint was not timely served on all defendants, pursuant to California Rule of Court 3.110. The Court did not receive a timely opposition.

Defendant appears to properly identify the issue that Plaintiff has failed to comply with rules of service. Plaintiff additionally appears to have failed to make any efforts in this case, not filing a Case Management Conference statement prior to the October Case Management Conference, nor meeting and conferring in advance of that CMC. It would appear that Plaintiff has abandoned this case.

The problem, however, is that Defendant seeks the assistance of inapplicable standards—federal rules in a state court case—and the wrong remedy. While CCP 3.110 does identify the timing for service, the remedy is that the Court must issue an Order to Show Cause to Plaintiff as to why sanctions should not issue.

The Court will therefore issue the required OSC. Sanctions up to and including terminating sanctions may be appropriate, particularly if Plaintiff has abandoned this matter. Given, however, that a valid Motion to Compel Arbitration is being heard contemporaneously with this Motion, Defendant may elect alternate remedies. If Defendant wishes to proceed with arbitration forthwith, he may withdraw this motion and proceed accordingly. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

9. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves to compel arbitration and stay this matter in Superior Court. He has submitted proof of a written agreement to submit this matter to arbitration, signed by Plaintiff Jonathan Cotham and Defendant. The Court received no timely opposition.

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, hereinafter "Pinnacle,"* (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

"[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable.'" (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.)

Once the party seeking to compel arbitration has alleged the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) As the Court received no opposition, there is no valid rebuttal to the facially valid agreement.

The only complicating matter here is the issue also addressed on calendar contemporaneously with this motion. If Plaintiff is not abandoning this matter, and if Plaintiff satisfies the Court pursuant to the OSC that is issuing on failure to timely serve Defendants, then this matter would at that point properly proceed to arbitration.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is tentatively granted but Defendant is entitled, if he so desires, to have the Court resolve the issues relating to the service of the complaint resolved prior to arbitration. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

10. 9:00 AM CASE NUMBER: C25-00838
CASE NAME: SAMUEL GLASMAN VS. TOM NGUYEN
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: STEPHEN D. MENARD
FILED BY: JLG INDUSTRIES, INC.
TENTATIVE RULING: